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PART II

Statutory Notifications (S. R. O.)

GOVERNMENT OF PAKISTAN

NATIONAL ELECTRIC POWER REGULATORY AUTHORITY

NOTIFICATION

Islamabad, the 13th January, 2015

S. R. O. 17 (I)/2015.—In exercise of the power conferred under Section 10 (1) and Section 7 (2) (1) of the Regulation of Generation, Transmission and Distribution of Electric Power Act (XL of 1997), the National Electric Power Regulatory Authority (NEPRA) hereby notifies the following guidelines for appointment of Consultant(s) / Consulting Firm(s) as and when required:

PART I

PRELIMINARY

1. **Short title, commencement and application.**—(i) These guidelines shall be called National Electric Power Regulatory Authority (appointment of consultants) Guidelines, 2015.

(ii) These guidelines shall come into force at once.

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2. A Consultant / Consulting Firm may be employed for carrying out a specialized assignment or a specific job related to Technical, Legal, Financial issues etc. at a suitable remuneration on case to case basis, after due assessment of the prevailing market rates.

3. The hiring of the Consultant(s) shall generally be made through open competitive bidding. However, if felt expedient and if the desired expertise is not commonly available to seek the services through competitive process, direct contracting may be used as a method for hiring Consultant(s) by recording its reasons and justification in writing for resorting to direct contracting and shall place the same on record. Provided that in case of engagement of a legal counsel for representation in the courts, the engagement/appointment shall be made on case to case basis considering the expertise of the legal counsel and nature of the issues involved in accordance with litigation manual approved by the Authority and the procedure provided herein shall not be applicable in that case.

PART II

PROCEDURE FOR HIRING OF CONSULTANT(S) THROUGH OPEN COMPETITIVE BIDDING:

4. The Division / Directorate of NEPRA which feels the need to hire a Consultant(s) for a specific assignment may submit the requisition with detailed justification including the following with the recommendation of the Member concerned for seeking approval of the Authority:

- (i) Terms of reference / specific task(s) to be accomplished by the consultant(s);
- (ii) Details of the outputs required from the consultant(s);
- (iii) Anticipated benefits from the proposed assignment;
- (iv) Professional expertise and experience required for the task to be undertaken;
- (v) Approximate time required for completion of the job;
- (vi) Cost estimates;
- (vii) Short listing Criteria;

5. Consultancy will be advertised indicating the requirements mentioned at para-4 above. A two envelope process will be adopted where Technical and Financial proposals will be obtained separately. Financial proposals will be opened only after evaluation / ranking of the Technical proposals.

6. A Selection Committee shall be constituted by the Authority that would evaluate the Technical proposals and submit its recommendations, following which the Financial proposals will be opened and the contract shall be awarded by the Authority considering the quality and cost of the proposals.

7. If the Consultant(s) is required to be hired on direct contracting basis, the Division / Directorate concerned shall submit its requisition with reasons and justifications in writing alongwith recommendation of the Member concerned for seeking approval of the Authority.

8. Financial sanction for the appointment of a Consultant(s) on the terms and conditions recommended by the Committee shall also be approved by the Authority.

9. The Consultant's output and invoice for payment shall be reviewed / endorsed by the Division / Directorate concerned before release of payment.

CONTRACTING PROCEDURE:

10. While making an offer to the successful consultant / consulting firm, the following will be provided in the contract / agreement:—

- (i) Statement of objectives of the assignment;
- (ii) Responsibilities of the consultant stating particulars of the outputs required from him/her/them;
- (iii) Duration of the contract indicating completion dates/termination of contract;
- (iv) Financial provisions reflecting manner of payment of remuneration etc;
- (v) General provisions regarding matters like earlier termination of contract or extension of contract;
- (vi) Mode of periodic performance appraisal of the consultant.

[No. NEPRA/ACG-01.]

SYED SAFEER HUSSAIN,
Registrar.

